

24NWCV04551 24NWCV04551

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CASAYSAYAN v.

GENERAL MOTORS, LLC

CASE NO.: 24NWCV04551

HEARING: Tuesday, July
14, 2025, at 9:30 AM

Defendant GENERAL MOTORS LLC's Motion for Summary Judgment
is DENIED. Defendant GENERAL MOTORS LLC's Motion for Summary
Adjudication is DENIED.

Moving Party to give notice.

BACKGROUND

On November 11, 2024, Plaintiff ANSELMO CASAYSAYAN
("Plaintiff") filed this "lemon law" action against Defendant GENERAL MOTORS
LLC ("Defendant" or "GM") and DOES 1 through 10, inclusive.

The Complaint alleges, in pertinent part, "Plaintiff
purchased a 2024 Chevrolet Silverado 1500, VIN: 3GCPDBEK5RG169416, ('the
vehicle')." (Complaint ¶ 6.) "Plaintiff received an express warranty from
GENERAL MOTORS LLC, through which GENERAL MOTORS LLC undertook to preserve or
maintain the utility or performance of Plaintiff's vehicle or provide
compensation if there was a failure in such utility or performance. GENERAL

MOTORS LLC provides the same express warranty whether a vehicle is acquired through a cash sale, financed sale, or lease.” (Complaint ¶ 7.)

The Complaint asserts the following causes of action:

(1) Violation
of Song-Beverly Act and

(2) Violation
of the Magnuson-Moss Act

Defendant now moves for summary judgment, or alternatively, summary adjudication of the following issues: (1) as to the Plaintiff’s first cause of action, Defendant promptly offered to repurchase Plaintiff’s vehicle and (2) since Plaintiff has no viable state breach of warranty claim, Plaintiff’s second cause of action fails.

LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the

cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

DISCUSSION

First Cause of Action of Action – Violation of Song-Beverly Act

Defendant moves for summary judgment on the grounds that Plaintiff failed to accept, negotiate, or entertain Defendant’s pre-litigation offer to repurchase the Subject Vehicle.

“The Legislature precisely detailed the manufacturer’s repurchase obligations in order to simplify negotiations and reduce the need for litigation to resolve lemon law claims.” (Carver v. Volkswagen of America, Inc. (2024) 107 Cal.App.5th 864, 997.) Civil Code section 1793.2, subd. (d)(2) establishes a manufacturer’s obligations under the Act:

If the manufacturer...is unable to service or repair a new motor vehicle... to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle.

(Civ. Code, § 1793.2, subd. (d)(2).)

Although the Act requires a prompt offer to replace or

repurchase the defective vehicle, there is nothing in the Act specifying a time. (Dominguez v. American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53, 60 [Dominguez] [six week offer to repurchase the vehicle in response to Plaintiff's request for repurchase or replacement was found to be prompt].) "[C]ourts have found offers to be prompt where 40 to 50 days elapsed between the consumers' initial requests for repurchase/replacement and the manufacturers' offers." (Carver, supra, 107 Cal.App.5th at 879-80.)

Defendant puts forth the following evidence to support its argument that it fulfilled its obligations under the Act:

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On November 1, 2024, Plaintiff contacted GM stating that he "would like a review for repurchase" based on prior visits to the dealership on October 29-31, 2024, in which Plaintiff reported noises coming from the steering. (SS No. 4.)

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On November 4, 2024, GM initiated a repurchase review and began gathering additional information to complete the review. On the same day, GM finalized its review and sent Plaintiff an email notifying him of GM's decision to repurchase the Silverado, which included an itemized breakdown of the repurchase offer. (SS No. 5.)

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On November 6, 2024, GM sent Plaintiff a letter notifying him of the decision to repurchase the Silverado, which included an itemized breakdown of the repurchase offer. (SS No. 6.)

In opposition, Plaintiff contends that Defendant's November 6, 2024, Letter did not constitute an offer under the Act. The Court agrees.

An offer must be sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer. (Covert v. FCA USA, LLC. (2022) 73 Cal.App.5th 821, 833.)

The Court identifies several issues with Defendant's "offer." First, Defendant provides an incomplete assessment. Defendant estimates

the repurchase total is \$47,897.07. However, the total price contains four variables that may change the repurchase price. Defendant's estimate states each of the following variables may change the final repurchase amount:

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Amount owed to the lender when applicable

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Subsequent payments

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Negative Equity

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Any non-GM products prorated reimbursement

Second, Defendant allowed Plaintiff to submit receipts related to the repurchase but stated submitting receipts does not guarantee Defendant will provide reimbursement. Further leaving an uncertain final repurchase amount.

Third, Defendant agreed to pay off the payoff balance owed to Plaintiff's lender. Defendant advised Plaintiff that if the amount in liens exceeds the estimated repurchase price, Plaintiff maintains the option to proceed with the transaction. Further, Plaintiff maintains the choice to proceed with the transaction after Defendant notifies Plaintiff of which expenses it is willing to reimburse.

Plainly, Defendant's letter does not provide the actual reimbursement amount Defendant would pay to Plaintiff. Defendant's \$47,897.07 estimate is illusory. Indeed, the question remains as to what amount of money Defendant would reimburse Plaintiff.

Essentially, Defendant is arguing that it sent Plaintiff a proper offer where Plaintiff would have to accept a reimbursement amount without knowing what the amount was. Such cannot be an offer. An offer is the manifestation of willingness to enter a bargain, so made as to justify another person in understanding that his assent to that bargain is invited and will conclude it. (Donovan v. RRL Crop. (2001) 26 Cal.App.4th 261, 271.)

Defendant provided Plaintiff two separate offers. Plaintiff could refuse the repurchase after (1) Defendant deducted the amount owed to Plaintiff's lender and (2) after Defendant notified Plaintiff of any expenses it would reimburse. Defendant's promise does not foreclose bargaining nor invite acceptance. Simply put, Defendant's estimate is too nebulous and non-committal to constitute a valid offer under the Act.

Thus, Defendant's Motion for Summary Adjudication against Plaintiff's Song-Beverly Claim is DENIED. Since Plaintiff's Song-Beverly Claim survives, so does Plaintiff's Manguson Moss Claim.

CONCLUSION

Defendant's Motion for Judgment is DENIED. Defendant's Motion for Summary Adjudication is DENIED.

Plaintiff's Objections Nos. 1-4 are OVERRULED.